

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.57018 of 2021
(Muhammad Ejaz alias Mithoo Shah v. The State & another)
and
Criminal Appeal No.57020 of 2021
(Muhammad Zulqarnain alias Zulli v. The State & another)
and
Criminal Appeal No.32181 of 2023
(Syed Muhammad Sibtain Shah v. Aamir Shahzad alias Asif & 2
others)
and
Criminal Revision No.32182 of 2023
(Syed Muhammad Sibtain Shah v. The State & another)
and
Murder Reference No.146 of 2021
(The State v. Muhammad Ejaz alias Mithoo Shah)

JUDGMENT

Date of hearing: 29.04.2025

Appellants by: M/S Abdul Khaliq Safrani and Muhammad Irfan Malik, Advocates.
Complainant by: Ch. Muhammad Rasib Khan Kahana, Advocate.
State by: Mr. Muhammad Akhlaq, Deputy Prosecutor General.

Abher Gul Khan, J. Muhammad Ejaz alias Mithoo Shah and Muhammad Zulqarnain alias Zulli (appellants) along with two others, namely, Aamir Shahzad alias Asif and Mulazim Hussain involved with case FIR No.523/2019 dated 28.12.2019 registered under Sections 302, 324, 148 & 149 PPC at Police Station Bhera District Sargodha, were tried by learned Additional Sessions Judge, Bhalwal, District Sargodha. Trial Court *vide* judgment dated 24.08.2021 while acquitting accused Aamir Shahzad alias Asif and Mulazim Hussain convicted and sentenced the appellants as under:-

1.Muhmmad Ejaz alias Mithoo Shah (appellant)
Under Section 302(b) PPC to suffer death sentence as *ta'zir*. He was also directed to pay compensation of Rs.5,00,000/- in terms

of Section 544-A, Cr.P.C. to the legal heirs of deceased which was ordered to be recovered as arrears of land revenue.

2.Muhammad Zulqarnain alias Zulli (appellant)

Under Section 302(b) PPC to suffer imprisonment for life as *ta'zir*. He was also directed to pay compensation of Rs.5,00,000/- in terms of Section 544-A, Cr.P.C. to the legal heirs of deceased which was ordered to be recovered as arrears of land revenue. Benefit of Section 382-B Cr.P.C., however, was extended to him.

Challenging their conviction and sentence, Muhammad Ejaz alias Mithoo Shah and Muhammad Zulqarnain alias Zulli (appellants) filed two separate appeals i.e. **Criminal Appeal No.57018 of 2021** & **Criminal Appeal No.57020 of 2021** respectively, whereas Syed Muhammad Sibtain Shah (complainant) filed **Criminal Appeal No.32181 of 2023** against the acquittal of Aamir Shahzad alias Asif & Mulazim Hussain (respondents No.1 & 2) and **Criminal Revision No.32182 of 2023** for enhancement of sentence of Zulqarnain alias Zulli (respondent No.2). Likewise, trial court forwarded a reference which was numbered as **Murder Reference No.146 of 2021** under Section 374 Cr.P.C. to seek confirmation or rejection of the death sentence imposed on the convict, Muhammad Ejaz alias Mithoo Shah. All the matters are being decided through this single judgment.

2. Precisely stated the facts of the prosecution case as unfolded by Syed Muhammad Sibtain Shah in FIR (Exh.PM/1), chalked out on the basis of his written complaint (Exh.PM) are that on 28.12.2019 at about 02:15 p.m., Rizwan Haider (son of the complainant) and his friends Mudassar Abbas, Zia-ur-Rehman and Jani were going on two motorcycles to the house of Mudassar Abbas. When they reached at Noor Khanewala Nala near the *Dera* of Muhammad Khan, accused Ejaz Shah *alias* Mithoo Shah armed with pistol, Zulqarnain *alias* Zulli armed with pistol 30-bore, Aamir Shahzad *alias* Asif armed with rifle .44 bore and Mulazim Hussain armed with pistol along with two unknown accused, who were ambushed in the water channel (Nala), emerged there. Accused Zulqarnain exhorted to stop the motorcycles and made a fire shot with his pistol hitting on the right shin of Rizwan Haider. The second

fire shot made by accused Ejaz Shah *alias* Mithoo Shah with his pistol hit Rizwan Haider at his back near left shoulder, whereas the fire shot made by accused Mulazim Hussain hit at the right heel of Zia-ur-Rehman. On hearing the sound of firing, Mazhar Hussain Shah and Syed Tehzeeb-ul-Husnain Shah, who were also behind them on their motorcycles arrived at the spot and witnessed the occurrence, upon which all the accused decamped therefrom. Motive behind the occurrence, as stated by the complainant, was that on the fateful day at about 01:00 p.m. an altercation took place between Mudassar Abbas and the accused through a mobile phone call.

3. On 28.12.2019 Syed Muhammad Sibtain Shah (complainant) presented an application (Ex.PM) before Fida Muhammad, ASI (PW.7) at Police Station Bhera, on the basis of which he got composed the FIR (Exh.PM/1) through computer operator. On the same day, Rana Muhammad Yousaf, SI/IO (PW.11) visited the place of occurrence, prepared inquest report (Exh.PF), drafted application (Exh.PE) for postmortem examination and handed over the dead body of Rizwan Haider to Husnain Ali, 854/C (PW.3) for escorting the same to mortuary of THQ Hospital, Bhera for autopsy. He prepared the rough site plan of the place of occurrence (Exh.PT), collected the blood stained earth from the place of murder of the deceased and secured the same through recovery memo Exh.PN. He further collected four crime empties of .30 bore pistol (P.11/1-4) through memo Exh.PP and took into possession motorcycle bearing No.1723-GTL through recovery memo Exh.PQ. On 29.12.2019 injured Zia-ur-Rehman joined the investigation and he prepared his injury statement (Exh.PH) and got conducted the medical examination of injured through Husnain Ali 854/C (PW.3). He arrested all the four accused on 21.01.2020. On 31.01.2020, accused Muhammad Ejaz *alias* Mithoo Shah made disclosure and got recovered pistol .30 bore (P.12) which was secured vide recovery memo Exh.PR. Accused Mulazim Hussain also got recovered pistol

.30 bore (P.14) which was taken into possession through memo Exh.PR. Accused Zulqarnain got recovered pistol .30-bore (P.8) (P.9/1-2) which was seized vide memo Exh.PK, whereas, accused Aamir Shahzad alias Asif got recovered rifle .8 mm (P.10) which too was secured through memo Exh.PL. After complying with all the codal formalities Investigating Officer submitted report under Section 173 Cr.P.C against accused through concerned SHO.

4. During trial, prosecution in order to prove its case against the appellants and their co-accused produced Dr. Fawad Munawar (PW.4) and Dr. Shahid Mehmood Sial (PW.5) who furnished the medical evidence, Mazhar Hussain Shah (PW.8) and Tehzeeb-ul-Husnain (PW.9) entered appearance in the witness box as witnesses of ocular account. Investigating Officer Rana Muhammad Yousaf, S.I. was examined as PW.11 and the remaining PWs were more or less formal who acted according to the law to aid and support the investigation.

5. Dr. Shahid Mehmood (PW.5) on 28.12.2019 at about 09:45 p.m. conducted the autopsy of Rizwan Haider and noted the following injuries:-

- (i). A firearm wound of entrance 1 cm x 1 cm on left side of backside, 4 cm from midline with blackening.
- (ii). A firearm wound of entrance 1 cm x 1 cm on posterior aspect of right leg, 14.5 cm from lateral malleolus.
- (iii). A firearm wound of exit 2.5 cm x 1 cm on outer aspect of right left, 14.5 cm from medial malleolus.
- (iv). A firearm wound of entrance 1 cm x 1 cm on right foot, 3 cm from lateral malleolus.
- (v). A firearm wound of exit 2.5 cm x 1 cm, 2 cm away from wound of entry.

In his opinion, death in this case occurred due to shock and hemorrhage because of collective effect of all the injuries, which were ante-mortem, caused by firearm and sufficient to cause death in ordinary course of nature. The doctor described the probable time elapsed between injuries and death as immediate and between death and postmortem about eight hours.

Dr.Shahid Mehmood Sial (PW.5) on 29.12.2019 at about 10:00 a.m. medically examined Aziz-ul-Rehman (injured) and noted the following injury:-

A lacerated wound of 2 cm x 1 cm on the edge of heel of right side of foot about 11 cm from medial malleolus. No gun powder seen.

Dr. Fawad Munawar (PW.4) on 01.02.2020 examined the injured Zia-ur-Rehman and after removing the foreign body from his injury issued MLC (Exh.PC).

6. After the conclusion of prosecution evidence, Muhammad Ejaz alias Mithoo Shah and Muhammad Zulqarnain alias Zulli (appellants) were examined under section 342 Cr.P.C. during which they were asked the questions arising out of the prosecution evidence but they denied almost all those questions while pleading their innocence and false implication with the case. Appellants neither opted to appear as of their own witness under Section 340(2) Cr.P.C. nor produced any evidence in their defence. On the conclusion of trial, both the appellants were convicted and sentenced as afore-stated, hence the instant criminal appeals, criminal revision and murder reference.

7. It is contended on behalf of the appellants that the FIR in this case was registered with a considerable delay but while tampering with the record it was looked to be chalked out promptly. The eyewitnesses who appeared before the trial court in support of the ocular account are chance witnesses, thus their statements cannot be relied upon for maintaining the convictions awarded to the appellants. The eyewitnesses made dishonest improvements in order to bring the case of the prosecution in line with the medical evidence. The medical evidence contradicts the ocular account. The recovery of pistols affected at the instance of the appellants was foisted upon them just to strengthen the weak prosecution case. The motive set out in the FIR remained unproved throughout the trial. In these circumstances, learned counsel argued that the convictions and

sentences awarded to the appellants are liable to be set-aside warranting their clean acquittal.

8. On the other hand, learned Deputy Prosecutor General well assisted by learned counsel for the complainant submitted that the matter was reported to the police within a reasonable time. The eyewitnesses properly explained their presence at the spot and they while appearing before the trial court narrated the stance of the prosecution in a very natural manner. The medical evidence is in line with the ocular account. The prosecution also sought corroboration from the recovery of pistols at the instance of the appellants as well as duly proved motive. It was thus prayed that the convictions and sentences awarded to the appellants be maintained.

9. We have gone through the case file, heard pro and contra arguments of the learned counsel for the parties well assisted by the Deputy Prosecutor General, and perused the record.

10. It divulges from the scrutiny of record that the case in hand is arising out of an incident which took place on 28.12.2019 at about 2:15 p.m. at Noor Khanewala Nala, near the Dera of Muhammad Khan situated within the territorial jurisdiction of Police Station Bhera. During the incident allegedly Zulqarnain (appellant) fired a pistol shot which hit at the right shin of Rizwan Haider, whereas the fire shot made by Ejaz Shah alias Mithoo Shah (appellant) from his pistol landed at the back of Rizwan Haider (deceased), who after the receipt of injuries fell on the ground and took his last breath. We have also observed that Mulazim Hussain (since acquitted) also fired a shot from his pistol which hit at the right heel of Zia-ur-Rehman (injured). In the wake of facts mentioned hereinabove we have observed that though FIR in this case was registered within 02-hours & 25-minutes of the incident and this aspect is canvassed before us as the strong point of prosecution but the perusal of record sheds doubt upon the acclaimed time of imparting information of crime to police. In this regard, firstly it is noticed that after the incident

Investigating Officer, namely Rana Muhammad Yousaf SI (PW.11) visited the spot, prepared inquest report (Exh.PF) and in its column No.3 mentioned only the date of incident as 28.12.2019 and did not describe the time of occurrence. This fact was admitted by Rana Muhammad Yousaf SI (PW.11) during his cross-examination with the following words:-

“Column No.3 of the inquest report is meant for mentioning the date and time when the information regarding the death is received. In inquest report Ex.PF in column No.3 I have only mentioned the date and no time is mentioned.”

From above, it can conveniently be held that by the time the inquest report was prepared by the Investigating Officer, the time of incident was not known to him. Secondly, it is observed that despite the information of crime having been conveyed to police before 4:40 p.m. still the autopsy of deceased was conducted at 9:45 p.m. The intervening duration of about 8-hours between the time of incident and autopsy since remained unexplained, thus gives an indication that the FIR was not registered at the time mentioned in the relevant column. Furthermore, Dr.Shahid Mehmood Sial (PW.5) who performed autopsy upon the body of Rizwan Haider (deceased) in his examination-in-chief stated that the police papers were received by him at 9:30 p.m. The unexplained delay in submission of police papers to the Medical Officer and holding autopsy is always considered fatal for the prosecution case and leads us to conclude that the story of the prosecution was cooked up after procuring the attendance of false eyewitnesses. Reliance in this context may be placed upon the case reported as Muhammad Ilyas v. Muhammad Abid alias Billa (2017 SCMR 54) wherein the Supreme Court of Pakistan held as under:-

“Post-mortem examination of the dead body of Muhammad Shahbaz deceased had been conducted after nine hours of the incident which again was a factor pointing towards a possibility that the time had been consumed by the local police and complainant party in procuring and planting eye-witnesses and cooking up a story for the prosecution.”

11. In addition to above, as per complaint (Exh.PM) Syed Muhammad Sibtain Shah (complainant) narrated the tale of incident in a way to give impression that he along with PWs Mazhar Hussain Shah and Syed Tehzeeb-ul-Husnain saw the occurrence but nowhere mentioned that he was not present at the spot and whatever he narrated in the complaint was on the asking of someone. Perusal of record further shows that Mazhar Hussain Shah (PW.8) in his examination-in-chief stated that the deceased and the injured were shifted to THQ Hospital Bhera where Syed Muhammad Sibtain Shah (complainant) reached and the entire occurrence was narrated to him. The occurrence took place at 2:15 p.m. and FIR was chalked out at 4:40 p.m. and what precluded Mazhar Hussain Shah (PW.8) and other eye-witnesses from reporting the matter directly to police regarding a broad daylight occurrence, makes the prosecution case highly doubtful. Moreover despite careful scrutiny of record we failed to find out the name of a person from whom the complainant got drafted the complaint. Neither the scribe of the complaint was produced before Rana Muhammad Yousaf SI/Investigating Officer (PW.11) nor at trial stage to prove that he drafted the complaint at the dictation of complainant. Admittedly complainant Syed Muhammad Sibtain Shah died prior to recoding of his evidence before the Court, though, in such circumstances, FIR could be brought on record through secondary evidence, yet it could not be termed as a corroboratory piece of evidence keeping in view the non-appearance of the complainant, who did not appear in the witness box and was not subjected to cross-examination. While holding so, we rely upon the case reported as Ghaus Muhammad alias Ghaus and another v. The State (1979 SCMR 579) wherein the Supreme Court of Pakistan has held that:-

“The maker of the FIR has died. It cannot be used as corroboration of the testimony of another person, namely, Nur Muhammad P.W. At best the prosecution can use it for showing that the name of Nur Muhammad is mentioned in

the FIR but that by itself would not advance the prosecution case.”

Further reference on the subject can also be made to the recent pronouncement of the Supreme Court of Pakistan reported as Muhammad Ramzan v. The State (2025 SCMR 762) wherein it is held that:

“It is settled law that FIR by itself is not a substantive piece of evidence unless its contents are affirmed on oath in the witness box by its maker and its maker is subjected to the test of cross-examination. In view of Articles 140 and 153 of the QSO, FIR being a previous statement can only be used for contradicting its maker but unless the same is not proved through its maker, cannot be used as a substantive piece of evidence in favour of the prosecution’s case.”

12. As stated above the complainant died prior to recording of his statement before the Court, so the ocular account in this case was furnished by Mazhar Hussain Shah (PW.8) and Syed Tehzeeb-ul-Husnain (PW.9), out of them the former was the maternal uncle of deceased whereas the latter was not related to deceased, rather was from his brotherhood. While examining the evidence of eye-witnesses in a case of homicide the question of foremost importance relates to their acclaimed presence at the spot. In the instant case, we have straightaway observed that both the PWs were residents of Nabi Shah Bala situated at a distance of 15/16 kilometers from the place of occurrence whereas the incident took place at Noor Khanewala Nala, near the Dera of Muhammad Khan. This fact was admitted by Mazhar Hussain Shah (PW.8) during his cross-examination, a relevant portion of which is reproduced hereunder:-

“I and Tehzeeb-ul-Husnain PW are residents of Nabi Shah Bala which is at a distance of 15/16 kilometers from the place of occurrence. The place of occurrence is situated within the jurisdiction of PS Bhera whereas our village falls within the limits of PS Saddar Bhalwal.”

Moreover, both the eyewitnesses while appearing before the trial court have failed to give any plausible explanation for their presence

at the spot, rather simply claimed to be in the company of deceased and uttered not a single word for their reason of being so. The presence of both the PWs at the spot, in the manner they claimed, makes them chance witnesses and their depositions suspect evidence. As a necessary corollary, the depositions of Mazhar Hussain Shah (PW.8) and Syed Tehzeeb-ul-Husnain (PW.9) are to be discarded from consideration. In the case reported as Naveed Asghar and two others v. The State (PLD 2021 Supreme Court 600), the Supreme Court of Pakistan, while dealing with the evidence of a chance witness, held as under: -

“.....chance witness: a witness who in view of his place of residence or occupation and in the ordinary course of events is not supposed to be present at the place of the occurrence but claims to be there by chance. Testimony of such witness requires cautious scrutiny and is not accepted unless he gives satisfactory explanation of his presence at or near the place of occurrence at the relevant time...”.

Further reference in this regard is made to the cases reported as Mst.Mir Zalai v. Ghazi Khan and others (2020 SCMR 319) and Muhammad Ashraf alias Acchu v. The State (2019 SCMR 652).

13. There is yet another factor which cast doubt about the truth of story advanced by both the eyewitnesses. Mazhar Hussain Shah (PW.8) and Tehzeeb-ul-Husnain Shah (PW.9) during evidence stated that they were going to village Bathunni to inspect a tractor. Both the PWs further stated that they shifted the dead body and injured to THQ Hospital Bhera, Sibtain Shah complainant came to THQ Hospital and thereafter they informed him about the occurrence. However, when they were confronted with their police statements (Exh.DA & Exh.DB) wherein the above-mentioned aspects were not so recorded. The relevant portions of statements of both the eyewitnesses on account of their relevancy are reproduced hereunder:-

Mazhar Hussain Shah (PW.8)

“I had stated in my statement before police that I and Tehzeeb-ul-Husnain were going to village Bathunni to inspect a tractor. Confronted with Ex.DA copy of the statement of the witness where

it is not so recorded. I had stated in my statement before the police that we shifted the dead body and injured to THQ Hospital Bhera. Confronted with Ex.DA where it is no so recorded. I had stated before the police that Sibtain Shah complainant came to THQ hospital thereafter and we informed him about the occurrence. Confronted with Ex.DA where it is no so recorded.”

Tehzeeb-ul-Husnain Shah (PW.9)

“I had stated in my statement before the police that I and Mazhar Shah PW were going to village Bathunni to inspect a tractor for him. Confronted with Ex.DB copy of the statement of the witness where it is not so recorded. I had stated in my statement before the police that we shifted the dead body and injured to THQ hospital Bhera. Confronted with Ex.DB where it is no recorded. I had stated before the police that Sibtain Shah complainant came in THQ hospital thereafter and we informed him about the occurrence. Confronted with Ex.DB where it is not so recorded. I had not got recorded in my statement before the police that we were attracted to the spot on hearing gunshot report. Confronted with Ex.DB where it is so recorded.”

The improvements so made by both the PWs are material in nature and were made by them just to strengthen the prosecution case. It is settled principle laid down for the appraisal of evidence that a witness who pollutes his evidence through dishonest improvements indeed compromises his own integrity which renders him unworthy of any credence. Reliance is placed upon the case reported as Sardar Bibi and another v. Munir Ahmed and others (2017 SCMR 344) wherein the Supreme Court of Pakistan has observed as under:-

“.....the improvements and omissions were made by the witnesses in order to bring the case of prosecution in line with the medical evidence. Such dishonest and deliberate improvement and omission made them unreliable and they are not trustworthy witnesses.”

Further reference on the subject can also be made to the recent pronouncement of the Supreme Court of Pakistan reported as Muhammad Nasir Butt and 2 others v. The State and others (2025 SCMR 662) wherein it was held as under:-

“.....dishonest improvements for assigning specific role to each accused, which creates serious doubt about the veracity of their testimony and it is not safe to place reliance on their statements.”

The depositions of both the eyewitnesses are further falsified from the fact that as per prosecution case during the incident one Zia-ur-Rehman received a firearm injury at the right heel allegedly caused by Mulazim Hussain (since acquitted). Admittedly, as per FIR (Exh.PM/1) the occurrence took place on 28.12.2019 at 2:15 p.m., however no MLC of injured Zia-ur-Rehman of 28.12.2019 is available on the record. According to statement of Dr.Shahid Mehmood Sial (PW.5), he on 29.12.2019 at about 10:00 a.m. after conducting medico legal examination of the injured issued MLC (Exh.PG) and noted a lacerated wound 2 cm x 1 cm on the edge of heel of right side of foot. However, we have observed that afore-said Zia-ur-Rehman did not appear before the trial court in support of the injury received by him and to explain delay in conducting his medical examination despite receiving firearm injury. No attempt on part of the prosecution to call him as court witness is oozing from the perusal of record. The legitimate inference which can be drawn from the withholding of such important piece of evidence is in accordance with Article 129 Illustration (g) of Qanun-e-Shahadat Order, 1984 which is to the effect that had Zia-ur-Rehman appeared in the witness box, he would not have supported case of prosecution. The foregoing provision for reference sake is being reproduced hereunder:-

“129. Court may presume existence of certain facts. The Court may presume the existence of any fact, which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and the public and private business, in their relation to the facts of the particular case.

Illustrations

The court may presume:

(g) that evidence which could be and is not produced would, if produced, be unfavourable to the person who withholds it.”

The Supreme Court of Pakistan in the case of Muhammad Rafique, etc. v. State & others (PLJ 2011 SC 191) held as under:-

“.....that if any party withholds the best piece of evidence then it can fairly be presumed that the party had some sinister motive behind it. The presumption under Article 129 (g) of Qanun-e-Shahadat Order can fairly be drawn that if PW Amir Ali would have been examined, his evidence would have been unfavourable to the prosecution.”

Moreover, in the inquest report (Exh.PF) the names of Zeeshan Haider and Ali Abbas have been mentioned as witnesses who identified the dead body of Rizwan Haider. In these circumstances, a safe inference can be drawn that had the complainant or the two eyewitnesses (PW.8 & PW.9) been present at hospital along with the dead body, their names should have been incorporated in the inquest report. It is also worth mentioning here that according to complaint (Ex.PM), the occurrence took place at 02:15 p.m., but in the postmortem report (Exh.PD) the time of death of the deceased has been mentioned as 01:30 p.m. on 28.12.2019 i.e. 45 minutes before happening of the alleged occurrence. These lacunas on part of the prosecution also create serious doubts in the veracity of the prosecution case.

14. It is further unearthed from the perusal of complaint (Exh.PM) that Rizwan Haider, Zia-ur-Rehman and Jani were going to the house of Mudassar Abbas while riding on two motorcycles. However during investigation only one motorcycle bearing registration No.1723/GTL belonging to Rizwan Haider (deceased) was taken into possession, whereas no description of any of the motorcycles, upon which the witnesses were riding, was provided. Rana Muhammad Yousaf SI/Investigating Officer (PW.11) has not taken into possession the motorcycle of the PWs in order to verify the contents of complaint to connect the accused with the alleged offence. He (PW.11) during cross-examination admitted this fact as under:-

“Mazhar Shah and Tehzeeb-ul-Hasnain had not produced their motorcycles before me nor they had mentioned the registration numbers and other details of their motorcycles.”

This fact was also admitted by Mazhar Hussain Shah (PW.8) during his cross-examination, the relevant portion of which is reproduced hereunder:-

“We did not produce our motorcycle to the IO nor the same was taken into possession by the police.”

The same stance was reiterated by Tehzeeb-ul-Husnain Shah (PW.9) in the following manner:-

“We did not produce our motorcycle to the police. I had also not stated before the police the registration number of our motorcycle.”

The abovementioned excerpts lead us to an irresistible conclusion that the witnesses of ocular account are not trustworthy and whatever they spoke before the trial court was nothing but a jumble of lie.

15. As per contents of FIR (Exh.PM/1), the motive behind the occurrence statedly was that on 28.12.2019 at about 1:00 p.m. a vituperative language was exchanged between one Mudassar Abbas and the accused on mobile phone. Although both the eyewitnesses Mazhar Hussain Shah and Tehzeeb-ul-Husnain Shah while appearing before the trial court deposed in line with the motive, however we have noticed that the same is not attributed to the appellants. In fact the motive is ascribed against one Mudassar Abbas who was not given even a scratch by the appellants. Moreover, in the complaint (Exh.PM) the complainant did not mention the name of the accused with whom Mudassar Abbas exchanged abusive language on mobile phone. Besides that, during investigation the complainant-party did not adduce any evidence in support of the motive. Rana Muhammad Yousaf SI (PW.11) during cross-examination also admitted that:-

“In application Ex.PM the complainant had not mentioned the name of any accused with which Mudassar Abbas PW had exchange of abuses on mobile phone. It is correct that the complainant party did not produce any evidence regarding motive of the accused persons with the deceased.

Mudassir Abbas PW had not produced his mobile phone in support of the motive nor his call data record was obtained.”

In such circumstances the motive set out in the FIR remained unproved. It is well settled that once the motive is set up by the prosecution and the same is not proved, the prosecution shall suffer. Reliance in this context may be placed upon the case reported as Sarfraz and another v. The State (2023 SCMR 670) wherein the Supreme Court of Pakistan held as under:-

“It is now well established that if a specific motive has been alleged by the prosecution then it is duty of the prosecution to establish the said motive through cogent and confidence inspiring evidence. Otherwise, the same would go in favour of the accused.”

16. Insofar as the recovery of .30 bore pistols (P.8 & P.12) at the instance of Zulqarnain & Muhammad Ejaz alias Mithoo Shah (appellants) is concerned, we have observed that on his first visit at the place of occurrence on the eventful day Rana Muhammad Yousaf SI (PW.11) took into possession four crime empties of .30 bore pistol through recovery memo Exh.PP. The PFSA report (Exh.PZ) reveals that the pistols recovered from the appellants were examined and found to be in mechanical operating condition, however it was opined by the expert of PFSA that:-

“Because of differences in individual characteristics the items C1 to C4 cartridge cases could not have been fired in the items P.1 to P3 pistols.”

In view of above, the recovery of pistols at the instance of appellants is inconsequential and is of no use to the prosecution for considering it a corroborative piece of evidence. Reliance is placed upon the case reported as Umer Hayat v. The State (PLD 1995 SC 526) wherein the Supreme Court of Pakistan held as under:-

“The circumstance of the recovery of gun from the appellant was of no legal consequence, in that, the Forensic Science laboratory's Report revealed that the empty recovered from the spot was not fired from the gun allegedly recovered from the appellant.”

17. The medical evidence in this case was furnished by Dr.Fawad Munawar (PW.4) and Dr.Shahid Mehmood Sial (PW.5). Suffice it to say in this regard that the medical evidence leads this court to tell the cause of death but does not provide the detail about the actual culprit. While holding so, we are enlightened from the observation of Supreme Court of Pakistan expressed in the case reported as Mursal Kazmi alias Qamar Shah and another v. The State (2009 SCMR 1410) wherein it was held as under:-

“As far as the medical evidence is concerned, it only supports the prosecution to the extent that the deceased lost his life due to firearm injury but it does not lead to the culprits.”

18. This Court is not oblivious of the fact that the appellants are charged with the serious allegation of taking the life of a young man but even in such a heinous case, the prosecution cannot be absolved from its responsibility of proving the case beyond scintilla of any doubt. The scanning of record leaves no room for discussion that multiple doubts emerge from the prosecution evidence the benefit of which ought to be extended to the appellants which can best be provided through the judgment of acquittal. As per saying of the Holy Prophet (ﷺ), the mistake in releasing a criminal is better than punishing an innocent person. Same principle was also followed by the Supreme Court of Pakistan in the case reported as Ayub Masih v. The State (PLD 2002 SC 1048), wherein, it was observed as under:-

“.... It will not be out of place to mention here that this rule occupies a pivotal place in the Islamic Law and is enforced rigorously in view of the saying of the Holy Prophet (p.b.u.h) that the “mistake of Qazi (Judge) in releasing a criminal is better than his mistake in punishing an innocent.”

In supra mentioned case of Ayub Masih, the Supreme Court was also pleased to observe as under:-

“...The rule of benefit of doubt, which is described as the golden rule, is essentially a rule of prudence which cannot be ignored while dispensing justice in accordance with law. It is based on the maxim, “it is better that ten guilty persons be acquitted rather than one innocent person be convicted.”

19. For the foregoing reasons, **Criminal Appeal No.57018 of 2021** and **Criminal Appeal No.57020 of 2021** are **allowed**, the conviction and sentence recorded by the learned trial Court against appellants Muhammad Ejaz *alias* Mithoo Shah and Muhammad Zulqarnain *alias* Zulli through the impugned judgment dated 24.08.2021 are set aside and they are acquitted of the charge. Both the appellants are in jail. They shall be released forthwith if not required in any other case. The death sentence awarded to convict Muhammad Ejaz *alias* Mithoo Shah is **not confirmed** and **Murder Reference No.146 of 2021** is answered in the **negative**.

20. In the light of our above findings, **Criminal Revision No.32182 of 2023** filed by Syed Muhammad Sibtain Shah (complainant) for enhancement of sentence of accused/respondent No.2 namely, Zulqarnain *alias* Zulli has become infructuous and is **dismissed**.

21. As far as **Criminal Appeal No.32181 of 2021**, filed against acquittal of respondents No.1 & 2, namely, Aamir Shahzad *alias* Asif and Mulazim Hussain is concerned, we have noted that alongwith the appeal, the applicant also filed an application under Section 5 of the Limitation Act, 1908, for condonation of delay in filing the appeal, as the same is barred by time. It is evident from the record that the impugned judgment was passed on 24.08.2021, and the applicant applied for its certified copies on 08.09.2021. The certified copies were delivered to the applicant on 14.09.2021, who filed the appeal in this Court on 08.05.2023. The appellant has not explained the sufficient cause for the delay in filing the appeal. The Criminal Procedure Code 1898 provides the time limit for filing an appeal against acquittal as 30 days under Section 417 (2-A) Cr.P.C. Therefore, an application for condonation of delay under Section 5 of the Limitation Act 1908 was not maintainable due to the bar

contained in Section 29 (2) (a) and (b) of the Limitation Act 1908. There being the particular limitation of thirty days prescribed by the statute mentioned above, the provision of Section 5 of the Limitation Act, 1908, has lost its applicability in the issue. Needless to observe that lapse of time is, in a criminal matter, sufficient to protect a person who has been acquitted against the other judicial process.

22. We are of the view that the ground taken by the appellant for condonation of delay cannot be said to be a justified ground for condoning the delay in filing the appeal. After calculating the entire period, it is apparent that the appeal was filed with a delay of 19-months and 15-days, which is admittedly barred by time. The appellant has not shown any sufficient cause/reason which prevented him from filing the appeal within the prescribed period of limitation of 30 days from the date of the order made by the learned Additional Sessions Judge, Bhalwal, District Sargodha. The applicant has failed to demonstrate any “sufficient cause” for the condonation of delay. There is no material on record in this regard. The applicant could not establish sufficient cause for the condonation of delay. For the reasons above, application for condonation of delay and Crl. Appeal No.32181 of 2021 are without merits. As such, the same are **dismissed**.

(AALIA NEELUM)
CHIEF JUSTICE

(ABHER GUL KHAN)
JUDGE

Approved for reporting

CHIEF JUSTICE

JUDGE